

25STCV32817 25STCV32817

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-09-15

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Case Number: 25STCV32817 Hearing Date: September 15, 2026 Dept: 224

Korea Deposit Insurance Corporation v. Pil-Jae Park

TENTATIVE RULING

The motion is GRANTED.

This action is stayed pending the determination of the Recognition Action.

ANALYSIS

Introduction

On May 15, 2025, Plaintiff Korea Deposit Insurance Corporation filed a Complaint seeking recognition of a foreign country money judgment (Case No. 25STCV14338) (the "Recognition Action").

On November 10, 2025, Plaintiff filed the Complaint in this action, alleging causes of action for voidable transfer under the Uniform Voidable Transactions Act and common law fraudulent conveyance.

On February 4, 2026, Defendant Pil-Jae Park filed a Motion to Stay Proceedings, set for hearing on March 4, 2026.

On February 19, 2026, Plaintiff filed an Opposition to the Motion to Stay Proceedings.

On March 30, 2026, Plaintiff filed a Complaint for breach of guaranty agreement (Case No. 26STCV10183) (the "Guaranty Action").

On April 16, 2026, the Court ordered the Recognition Action, this action, and the Guaranty Action related, with the Recognition Action designated the lead case. The previously filed Motion to Stay Proceedings was taken off calendar without adjudication.

On May 11, 2026, Defendant Pil-Jae Park filed the instant Motion for Order to Stay Proceeding.

On May 14, 2026, Defendant Eun Ryung Kim filed a Notice of Joinder in Defendant Pil-Jae Park's Motion for Order to Stay Proceeding.

On September 1, 2026, Plaintiff filed an Opposition.

Request for Judicial Notice

Park's request as to the complaint and answer in the Recognition Action and the Complaint in the Guaranty Action is GRANTED.

Legal Standard

"Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency." (Freiberg v. City of Mission Viejo (1995) 33 Cal.App.4th 1484, 1489.)

Discussion

Defendant Pil-Jae Park requests that the Court stay this action pending resolution of the Recognition Action, Case No. 25STCV14338. Defendant Eun Ryung Kim joins in the motion.

Defendant argues that a stay is warranted because the Recognition Action presents a threshold question that must be answered before this action can proceed. Namely, whether KDIC holds a foreign money judgment entitled to recognition in California. Defendant argues that KDIC is not currently a judgment creditor in this state, and that the outcome of the Recognition Action will be dispositive of whether KDIC is a creditor of Park at all.

Further, Defendant argues that a balancing of interests favors a stay. Defendant argues that he is being forced to litigate on three fronts at once, and that this action in particular requires factually intensive discovery into his personal finances, marital assets, and the circumstances of his divorce. Defendant argues that KDIC would face little or no prejudice from a stay because its claims are already on file and it may simply resume prosecution of this action if it prevails in the Recognition Action.

Here, the Court finds that considerations of judicial economy, prejudice, and the orderly administration of justice support a stay. (Code Civ. Proc., § 128, subds. (a)(3), (a)(5); Freiberg v. City of Mission Viejo (1995) 33 Cal.App.4th 1484, 1489.) KDIC has pleaded its creditor status exclusively on the Korean Judgment. (Complaint, ¶¶ 2, 11, 25, 30.) Where the underlying judgment supporting creditor status is eliminated, the fraudulent transfer remedy falls with it. (Weisenburg v. Cragholm (1971) 5 Cal.3d 892, 896-897.) The Recognition Action is therefore antecedent to this action. It will either supply the predicate for the claims pleaded here or moot them.

In any case, prosecuting both actions in parallel would duplicate discovery, motion practice, costs to the parties, time, etc. The record in this action already reflects four sets of written discovery to each defendant, Park's deposition, two motions to compel, and subpoenas that have generated motions to quash set for February 2027. All of that effort is contingent on a question the Court has not yet reached. Should KDIC not obtain recognition, that effort is wasted. This is the outcome the Court of Appeal has cautioned against, namely that a transfer action prosecuted alongside an unresolved creditor action "will have resulted in needless effort and expense to both parties and the court." (Cortez v. Vogt (1997) 52 Cal.App.4th 917, 930-932.)

Last, the prejudice to Defendants is concrete. Park is defending three related actions before it has been determined that KDIC may enforce anything against him in California. KDIC does not face comparable prejudice. KDIC does not establish that any prejudice from delay outweighs the inefficiency of parallel prosecution such that this action should proceed in the interests of justice.

Accordingly, the Court finds that considerations of judicial economy, prejudice, etc., support staying this action pending resolution of the Recognition Action. (Code Civ. Proc., § 128, subds. (a)(3), (a)(5).)

The motion to stay is GRANTED.

Conclusion

The motion is GRANTED.

This action is stayed pending the determination of the Recognition Action.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at SMCdept224@lacourt.org indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.